

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2005-003220 and 8504000002

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF
COLORADO OF CAROLE A. MCKELVEY, LPC, LICENSE NO. LPC #2198

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners (the "Board") and Carole A. McKelvey, LPC, ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor in the State of Colorado on or about April 30, 1999, and was so licensed at all times relevant herein.
3. Respondent no longer resides in Colorado, is not currently engaged in the practice of professional counseling in Colorado, and Respondent's license lapsed on June 30, 2007.
4. This Order is a full and final resolution of Case Numbers 2005-003220 and 8504000002. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
5. Respondent allowed her license the right to practice as a professional counselor in the State of Colorado to lapse, effective June 30, 2007, and requests that the Board accept said relinquishment. Respondent agrees not to reapply for licensure as a professional counselor in Colorado at any time in the future.
6. Following relinquishment of her license, Respondent shall not perform any act requiring a license to practice professional counseling in the State of Colorado.
7. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to

§ 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

8. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

9. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S.

10. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

11. This Order shall become effective when accepted and signed on behalf of the Board.

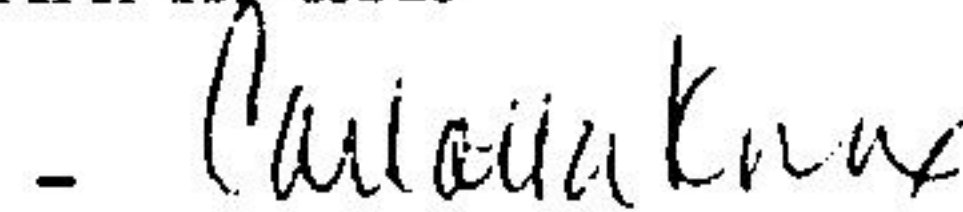
12. This Order shall be a public record in the custody of the Board.

13. Upon becoming effective, this Order shall be reported the National Practitioner Data Bank/Healthcare Integrity and Protection Data Bank and as otherwise required by law.

RESPONDENT


CAROLE A. MCKELVEY, LPC,
License No. LPC 2198

**COLORADO STATE BOARD OF
PROFESSIONAL COUNSELOR
EXAMINERS**

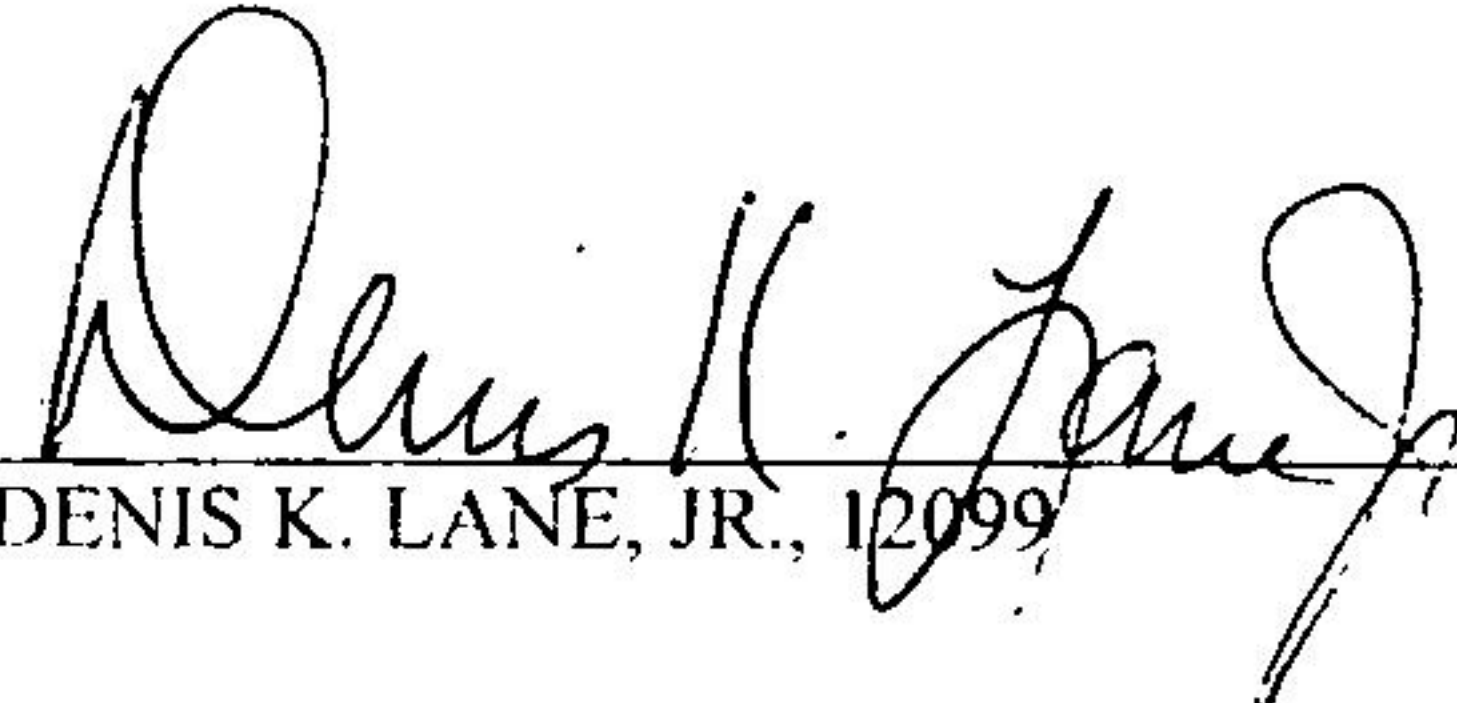


Carlotta Knox
Program Director

Effective Date: This 27th day of
October, 2008

APPROVED AS TO FORM:

FOR THE RESPONDENT



DENIS K. LANE, JR., 12099

Attorney for Respondent
Carole A. McKelvey, LPC

1912 West Colorado Avenue
P.O. Box 6476
Colorado Springs, Colorado 80934
Telephone: (719) 636-1017
FAX: (719) 635-4571

FOR THE BOARD



RITA QUINN, 20708
Assistant Attorney General
Business and Licensing Section

Attorneys for State Board of Licensed Professional
Counselor Examiners

1525 Sherman Street, 5th Floor
Denver, Colorado 80203
Telephone: (303) 866-5275
FAX: (303) 866-5395
*Counsel of Record